Supreme Court, U.S.
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No. 98-676

In The

Supreme Court of the United States

October Term, 1998

STEPHANIE HART, *et al.*,

Petitioners,

v.

DAN A. GWADOSKY,

Respondent.

On Petition For A Writ Of Certiorari To The Maine Supreme Judicial Court

RESPONDENT'S BRIEF IN OPPOSITION

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RESPONDENT'S BRIEF IN OPPOSITION

The respondent, Dan A. Gwadosky, Maine's Secretary of State ("Secretary"), respectfully requests that the Court deny the petition for a writ of certiorari seeking review of the decision and judgment of the Maine Supreme Judicial Court, sitting as the Law Court ("Law Court"), issued on July 28, 1998, reproduced in the Appendix to the Petition for a Writ of Certiorari ("Pet. App.") at Pet. App. 1a-15a, and reported in *Hart v. Secretary of State*, 715 A.2d 169 (Me. 1998).

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

In addition to the constitutional and statutory provisions cited by the petitioners, the following constitutional and statutory provisions are implicated by this lawsuit and are reproduced in the attached Respondent's Appendix ("Resp. App."): Me. Const. art. IV, pt. 3, § 18 (Resp. App. 1a-2a); Me. Const. art. IV, pt. 3, § 22 (Resp. App. 3a); and Me. Rev. Stat. Ann. tit. 21-A, § 905 (West 1993 & Supp. 1998) (Resp. App. 3a-5a).

STATEMENT OF THE CASE

The petitioners, Stephanie Hart and Mainers for Medical Rights, seek review of a decision that became moot as a result of the November 1998 election, concerning issues that the Law Court had not addressed previously in the 90 years that Maine has had citizen's initiatives. Because the conflict alleged by the petitioners

between the Law Court's decision and *Buckley v. American Constitutional Law Foundation*, No. 97-930, is illusory, the Court should not even hold this case pending the outcome of *Buckley* to issue a decision that will have no practical consequence to the parties.

In 1909, Maine amended its Constitution to provide for a citizens' initiative, whereby its citizens may initiate and pass legislation. *See* 1907 Me. Const. Resolves, ch. 121 (effective January 6, 1909) (codified as amended at Me. Const. art. IV, pt. 3, § 18; Resp. App. 1a-2a). The citizens' initiative has become an ingrained feature of Maine's political landscape, with citizens' initiatives appearing on virtually every statewide ballot in the past 25 years. Last year, the Law Court addressed for the first time a constitutional challenge concerning the twin requirements that petition circulators be Maine residents and be Maine registered voters.

The petitioners are seeking to enact by citizens' initiative a measure to legalize the use of marijuana for medical purposes in Maine. On November 24, 1997, the Secretary approved the form of the petition, which, under then existing law, gave the petitioners three years, *i.e.*, until November 24, 2000, to circulate their petitions and submit the required number of signatures. *See* Me. Rev. Stat. Ann. tit. 21-A, § 903-A (West Supp. 1998) (amended by 1997 Me. Laws ch. 637 (reducing circulation period to one year for subsequent citizens' initiatives)).

By February 24, 1998, *i.e.*, three months after the Secretary approved their petition for circulation, the petitioners submitted 68,330 signatures for the Secretary's review. Under Maine's Constitution, in order to qualify a

citizens' initiative for the ballot, the proponents must submit valid signatures equivalent to "10% of the total vote for Governor cast in the last gubernatorial election preceding the filing of such petition." Me. Const. art. IV, pt. 3, § 18(2); Resp. App. 1a. If the measure is not adopted without change by the Legislature, it is submitted to the people as a ballot question at the next statewide election. Me. Const. art. IV, pt. 3, § 18(3); Resp. App. 2a.

At the time the petitioners filed their petition, based on the November 1994 gubernatorial election, the minimum number of valid signatures necessary to qualify a citizens' initiative measure for the ballot was 51,131. The Secretary found that 21,821 of the signatures submitted to him were invalid, and, since the remaining 46,509 signatures fell below the threshold of 51,131 valid signatures, he declined to qualify the measure for the November 1998 ballot.

The petitioners then filed suit in Maine Superior Court pursuant to Me. Rev. Stat. Ann. tit. 21-A, § 905 (West 1993 & Supp. 1998); Resp. App. 3a-5a, challenging both the factual and the legal bases of the Secretary's decision. Because the Law Court had not yet issued its decision in *Palesky v. Secretary of State*, 711 A.2d 129 (Me. 1998), establishing the procedure for resolving factual disputes concerning the validity of signatures in citizens' initiatives, the Superior Court and the Secretary, on remand, conducted further proceedings to resolve the petitioners' factual challenges. Pet. App. 4a-5a, 35a-39a. Although these proceedings delayed the outcome of this matter, they ultimately were inconsequential since the petitioners abandoned their factual challenges on appeal to the Law Court. *See* Appellants' Brief at 5 n.1.

The petitioners challenged the constitutionality of the requirement that the petition circulators be Maine residents, which had resulted in the invalidation of 347 signatures, and the requirement that the petition circulators be Maine registered voters, which had resulted in the invalidation of 4,347 signatures. The Superior Court rejected both challenges, Pet. App. 18a-35a, and, on appeal to the Law Court, the petitioners conceded that "Petitioners must strike down *both* the residency and the voter registration requirements to qualify for the November 1998 ballot." Appellants' Brief at 5 n.1 (emphasis added).

The Law Court reached only the issue of residency, holding that this requirement did not offend the first amendment. Pet. App. 5a-14a. The Court specifically declined to reach petitioners' challenge to the registration requirement, noting that "[b]ecause the number of signatures invalidated on the basis of the circulator's residence alone would prevent the initiative from being placed on the November 1998 ballot, we affirm the judgment without ruling on the voter registration requirement." Pet. App. 2a.

Less than two weeks after the petitioners filed their Petition for a Writ of Certiorari ("Petition"), Maine held its November 1998 gubernatorial election. Fewer persons cast votes in that election than in the previous gubernatorial election held in 1994. Accordingly, the minimum number of petition signatures necessary to qualify an initiative measure for the ballot is now 42,101, *i.e.*, 9,030 less than the number of valid signatures previously required, and, more importantly, 4,408 less than the

number of valid signatures previously submitted by the petitioners. Resp. App. 9a.

On November 24, 1998, the petitioners again submitted their petition for the Secretary's review. Resp. App. 6a-8a. The petitioners resubmitted the 46,509 signatures that the Secretary had previously found to be valid, along with new petitions containing an additional 1,024 signatures. Resp. App. 9a. On December 23, 1998, the Secretary issued his determination that, in light of the newer lower threshold of 42,101 valid signatures, without even considering the signatures invalidated on the grounds of residency or registration, the petitioners had submitted sufficient valid signatures to have the petitioners' initiative placed on the November 1999 ballot. Resp. App. 9a-11a. The petitioners, therefore, seek review of two legal issues of no consequence to them, one of which was never addressed by Maine's highest court.

REASONS FOR DENYING THE WRIT

I. THE PETITIONERS' CHALLENGE IS MOOT AND IS OF NO RECURRING LEGAL SIGNIFICANCE TO THE PETITIONERS.

Regardless of the outcome of the petitioners' constitutional challenges, the petitioners have now succeeded in their stated aim to place their initiative on either the November 1998 or the November 1999 ballot. *See* Appellants' Brief at 5; Petition at 11-12 n.1, 15 n.2. The petitioners submitted 46,509 valid signatures by February 24, 1998, which was less than 10% of the ballots cast in the November 1994 election, but more than 10% of the ballots

cast in the November 1998 election. The petitioners' initiative therefore qualifies to be on the November 1999 ballot. The petitioners thus seek an advisory opinion from the Court on the constitutionality of Maine's requirements that circulators of citizens' initiatives be Maine residents and be Maine registered voters.

The petitioners assert in passing that this case is not moot for two reasons. Petition at 11-12 n.1. First, the petitioners contend that if they prevail on either or both of their constitutional challenges, it "would either qualify Petitioners' citizens' initiative for the November 1999 ballot or reduce the number of additional signatures that they would need to collect to qualify for that ballot." Petition at 12 n.1. This argument, however, only underscores the mootness of this challenge since the petitioners' citizens' initiative will now be on the November 1999 ballot without regard to the petitioners' constitutional challenges.

Second, the petitioners contend that this case "falls squarely" within the "capable of repetition yet evading review" exception to the mootness doctrine articulated in *Murphy v. Hunt*, 455 U.S. 478 (1982). *See* Petition at 12 n.1. The petitioners misquote the standard, which provides that, to fall within the exception, "there must be a 'reasonable expectation' or a 'demonstrated probability' that the same controversy will recur *involving the same complaining party.*" *Murphy v. Hunt*, 455 U.S. at 482 (emphasis added to show portion excised by the petitioners). Since the petitioners' citizens' initiative will be on the November 1999 ballot in light of the Secretary's recent decision on their resubmitted signatures, the petitioners are certainly incorrect when they argue that "[l]acking action by

the Court, Petitioners will face the same First Amendment harm when they attempt to place their petition on the November 1999 ballot." Petition at 12 n.1 (citation omitted).

This also is not the sort of a dispute that is so evanescent that it necessarily evades review by this Court. Under both the Maine Constitution and Maine statutes, the Secretary is required to review all petitions on an expedited basis, and the courts are required to resolve all judicial challenges on an expedited basis. *See* Me. Const. art. IV, pt. 3, § 22 (Resp. App. 3a); Me. Rev. Stat. Ann. tit. 21-A, § 905 (West 1993 & Supp. 1998) (Resp. App. 3a-5a). The petitioners filed their challenge on April 7, 1998, and, even with the additional proceedings necessitated by their ultimately abandoned factual challenges (and now unnecessary in light of the Law Court's decision in *Palesky v. Secretary of State*, 711 A.2d 129 (Me. 1998)), obtained a decision from Maine's highest court on July 28, 1998. If these constitutional questions ever arise again, it certainly is reasonable to believe that in light of these expedited procedures, the complaining party could seek and obtain review from the Court well in advance of an election.

Furthermore, a citizens' initiative can appear on the ballot in any November statewide election. Me. Const. art IV, pt. 3, § 18(3); Resp. App. 2a. This contrasts with a candidate's need to appear on the ballot in a particular election for a public office that is filled only periodically. Thus, if and when the Court reviews a live controversy concerning the constitutionality of Maine's residence and voter registration requirements, it can provide effective relief to the complaining party who seeks to place a

citizens' initiative on the ballot. The Court need not resolve these constitutional issues in the abstract at the urging of a party for whom this controversy is of no continuing consequence.

II. THE LAW COURT CORRECTLY REJECTED THE PETITIONERS' CHALLENGE ON GROUNDS THAT DO NOT CONFLICT WITH OTHER COURTS.

The petitioners' primary argument is that the Court should grant review because the decision below conflicts with decisions from the Eighth Circuit and the Tenth Circuit invalidating voter registration requirements for circulators of citizens' initiatives. *See* Petition at 14-19 (citing *Bernbeck v. Moore*, 126 F.3d 1114 (8th Cir. 1997); *American Constitutional Law Foundation, Inc. v. Meyer*, 120 F.3d 1092 (10th Cir. 1997), *cert. granted sub nom. Buckley v. American Constitutional Law Foundation, Inc.*, 118 S. Ct. 1033 (1998), and *cert. denied*, 118 S. Ct. 1045 (1998)). This conflict is entirely illusory since the Law Court made plain it was not ruling on the petitioners' constitutional challenge to the voter registration requirement: "Because the number of signatures invalidated on the basis of the circulator's residence alone would prevent the initiative from being placed on the November 1998 ballot, we affirm the judgment without ruling on the voter registration requirement." Pet. App. 2a.

The petitioners attempt to surmount this obstacle by claiming in passing that although the Law Court expressly stated it was not ruling on the voter registration requirement, it nevertheless did so because it affirmed

the Superior Court's "order and decision * * * in all respects." Petition at 15 n.2. This argument is belied by the unequivocal language of the Law Court's decision quoted above.

Additionally, the Law Court did only what it was asked to do by the petitioners. In the conclusion to their brief in the Law Court, the petitioners only sought reversal of the Secretary's decision (not the Superior Court's "order and decision") declining to place their initiative on the November 1998 ballot. *See* Appellants' Brief at 21. Furthermore, the petitioners virtually invited the Law Court to consider only one of their constitutional challenges with their concession that "Petitioners must strike down *both* the residency and the voter registration requirements to qualify for the November 1998 ballot." Appellants' Brief at 5 n.1 (emphasis added). The petitioners should not be heard to complain about the Law Court's refusal to reach their constitutional challenge to the voter registration requirement, and the Law Court should be taken at its word that it was unnecessary to do so. There is no conflict between the decision below and the Eighth and Tenth Circuit decisions on the voter registration requirement.

The Law Court did determine that it was constitutional to require that circulators of citizens' initiatives be, in fact, citizens of the State of Maine. Pet. App. 5a-14a. The petitioners argue that this decision conflicts with a district court's implicit rejection of a residency requirement for circulators. *See* Petition at 28 (citing *Term Limits Leadership, Inc. v. Clark*, 984 F. Supp. 470, 475 (S.D. Miss. 1997)). Suffice it to say, this Court does not review alleged conflicts between a decision of the highest court of a State

and the *dicta* of a lower federal court. *See* R. Stern, E. Gressman, S. Shapiro & K. Geller, *Supreme Court Practice*, § 4.8 (7th ed. 1993). Indeed, although numerous states have citizens' initiative procedures, the petitioners do not cite – and we are not aware – of any cases concerning the constitutionality of a residency requirement, which further militates against Court review of the decision below. *Cf. American Constitutional Law Foundation, Inc. v. Meyer*, 120 F.3d at 1100 (assuming, but not deciding, that "the state's potentially compelling interest in preserving the integrity of its elections requires all circulators to be residents," although concluding that the registration requirement was not narrowly tailored to achieve this interest).

The petitioners not only seek review of a constitutional issue upon which no other court has yet opined, but they seek review of a decision that is manifestly correct. In reserving for themselves the sovereign power to enact legislation by initiative, the citizens of Maine were careful to reserve for themselves the right to participate in this unique legislative process:

> In short, the sovereign which is the people, has taken back, subject to the terms and limitations of the amendment, a power vested in the Legislature when Maine became a state.

Farris v. Goss, 143 Me. 227, 231, 60 A.2d 908, 910 (1948). Thus, only residents of the State may propose measures by initiative, circulate and sign petitions in an effort to place them on the ballot, and vote to enact them as law. Me. Const. art IV, pt. 3, § 20.

The Law Court correctly held that Maine's interest in preserving, for members of its own political community, the power to engage in this retained sovereign power to legislate is compelling, and that the residency requirement is narrowly tailored to advance this interest. Even the petitioners recognize the importance of local citizen participation (or the appearance of such participation) in the citizen's initiative process by calling their group "Mainers for Medical Rights." The Law Court's conclusion that the residency requirement also advances the states's compelling interest in ensuring the integrity of the initiative process was also correct. There simply is no pressing national need for the Court to review this decision, or even to hold this case pending the outcome of *Buckley v. American Constitutional Law Foundation*, No. 97-930.

CONCLUSION

The Court should deny the petition for a writ of certiorari.

January 6, 1998

Respectfully submitted,

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RESPONDENT'S APPENDIX

§ 18. Direct initiative of legislation; number of signatures necessary on direct initiative petitions; dating signatures on petitions; competing measures; proclamation by Governor

Section 18. Direct initiative of legislation.

1. Petition procedure. The electors may propose to the Legislature for its consideration any bill, resolve or resolution, including bills to amend or repeal emergency legislation but not an amendment of the State Constitution, by written petition addressed to the Legislature or to either branch thereof and filed in the office of the Secretary of State by the hour of 5:00 p.m., on or before the 50th day after the date of convening of the Legislature in first regular session or on or before the 25th day after the date of convening of the Legislature in second regular session. If the 50th or 25th day, whichever applies, is a Saturday, Sunday, or legal holiday, the period runs until the hour of 5:00 p.m., of the next day which is not a Saturday, Sunday, or legal holiday.

2. Referral to electors unless enacted by the Legislature without change; number of signatures necessary on direct initiative petitions; dating signatures on petitions; competing measures. For any measure thus proposed by electors, the number of signatures shall not be less than 10% of the total vote for Governor cast in the last gubernatorial election preceding the filing of such petition. The date each signature was made shall be written next to the signature on the petition, and no signature older than one year from the written date on the petition shall be valid. The measure thus proposed, unless enacted without change by the Legislature at the session at which it is presented, shall be submitted to the electors together with

any amended form, substitute, or recommendation of the Legislature, and in such manner that the people can choose between the competing measures or reject both. When there are competing bills and neither receives a majority of the votes given for or against both, the one receiving the most votes shall at the next statewide election to be held not less than 60 days after the first vote thereon be submitted by itself if it receives more than 1/3 of the votes given for and against both. If the measure initiated is enacted by the Legislature without change, it shall not go to a referendum vote unless in pursuance of a demand made in accordance with the preceding section. The Legislature may order a special election on any measure that is subject to a vote of the people.

3. Timing of elections; proclamation by Governor. The Governor shall, by proclamation, order any measure proposed to the Legislature as herein provided, and not enacted by the Legislature without change, referred to the people at an election to be held in November of the year in which the petition is filed. If the Governor fails to order a measure proposed to the Legislature and not enacted without change to be submitted to the people at such an election by proclamation within 10 days after the recess of the Legislature to which the measure was proposed, the Secretary of State shall, by proclamation, order such measure to be submitted to the people at an election as requested, and such order shall be sufficient to enable the people to vote.

Me. Const. art IV, pt. 3, § 18

§ 22. Election officers and officials, how governed

Section 22. Until the Legislature shall enact further laws not inconsistent with the Constitution for applying the people's veto and direct initiative, the election officers and other officials shall be governed by the provisions of this Constitution and of the general law supplemented by such reasonable action as may be necessary to render the preceding sections self executing. The Legislature may enact laws not inconsistent with the Constitution to establish procedures for determination of the validity of written petitions. Such laws shall include provision for judicial review of any determination, to be completed within 100 days from the date of filing of a written petition in the office of the Secretary of State.

Me. Const. art IV, pt. 3, § 22

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§ 905. Review of initiative and referendum petitions

1. Secretary of State. The Secretary of State shall review all petitions filed in the Department of the Secretary of State for a people's veto referendum under the Constitution of Maine, Article IV, Part Third, Section 17, or for a direct initiative under the Constitution of Maine, Article IV, Part Third, Section 18.

The Secretary of State shall determine the validity of the petition and issue a written decision stating the reasons for the decision within 30 days after the final date for filing the petitions in the Department of the Secretary of

State under the Constitution of Maine, Article IV, Part Third, Section 17 or 18.

2. **Superior Court.** Any voter named in the application under section 901, or any person who has validly signed the petitions, if these petitions are determined to be invalid, or any other voter, if these petitions are determined to be valid, may appeal the decision of the Secretary of State by commencing an action in the Superior Court. This action shall be conducted in accordance with the Maine Rules of Civil Procedure, Rule 80C, except as modified by this section. In reviewing the decision of the Secretary of State, the court shall determine whether the description of the subject matter is understandable to a reasonable voter reading the question for the first time and will not mislead a reasonable voter who understands the proposed legislation into voting contrary to his wishes. This action must be commenced within 5 days of the date of the decision of the Secretary of State and shall be tried, without a jury, within 15 days of the date of that decision. Upon timely application, anyone may intervene in this action when the applicant claims an interest relating to the subject matter of the petitions, unless the applicant's interest is adequately represented by existing parties. The court shall issue its written decision containing its findings of fact and stating the reasons for its decision within 30 days of the commencement of the trial or within 45 days of the date of the decision of the Secretary of State, if there is no trial.

3. **Supreme Judicial Court.** Any aggrieved party may appeal the decision of the Superior Court, on questions of law, by filing a notice of appeal within 3 days of that decision. The appellant must file the required number of copies of the record with the clerk within 3

days after filing notice of appeal. After a notice of appeal is filed, the parties have 10 days to file briefs with the clerk of courts. As soon as the record and briefs have been filed, the court shall immediately consider the case. The standard of review shall be the same as for the Superior Court. The court shall issue its decision within 30 days of the date of the decision of the Superior Court.

Me. Rev. Stat. Ann. tit. 21-A, § 905 (West 1993 & Supp. 1997)

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November 23, 1998

(Via ~~Hand Delivery~~ [Federal Express])

Ms. Julie Flynn
Secretary of State's Office
148 State House Station
Augusta, ME 04333-0148

Re: Submission of Citizens' Initiative Petition

Dear Julie:

Stephanie Hart and Mainers for Medical Rights hereby submit their citizens' initiative petition entitled, "AN ACT to Permit the Medical Use of Marijuana," for a determination of its validity by the Secretary of State.

As we have discussed previously, I request that the Secretary of State include in his review all signatures in support of this citizens' initiative petition submitted by its sponsors in January and February of 1998. Secretary Gwadosky's Amended Determination of Validity, issued June 23, 1998, indicates that Ms. Hart and Mainers for Medical Rights submitted 4,622 fewer signatures than the required minimum of 51,131. Accordingly, Ms. Hart and Mainer for Medical Rights should be credited with 46,509 verified signatures previously submitted in support of their citizens' initiative petition. I ask that you add to this total the 915 verified signatures collected by the sponsors over the past several weeks. The collection sheets for

these new signatures, properly notarized and signed by the local registrars, are enclosed with this mailing. The newly collected signatures break down as follows:

Signatures	Township
546	Presque Isle
73	Caribou
296	Various other towns in Aroostook County
915	Additional Verified Signatures

Also enclosed are proofs of voter registration for three circulators, Charles Gale, Tom Murray and Christopher Little, as well as seven signature sheets on which the local registrants appear to have made errors during the verification process.

Because the Secretary of State did not authorize Ms. Hart and Mainers for Medical Rights to begin the collection of signatures until November 21, 1997, I believe that few, if any, signatures will be effected [sic] by the one-year expiration period. It is my understanding from previous discussions with you and with the Attorney General's Office that this letter, representing a formal resubmission of Ms. Hart's citizens' initiative petition, will toll the one-year expiration period and prevent any additional signatures from becoming invalid. I therefore calculate that Ms. Hart and Mainers for Medical Rights will have submitted approximately 47,424 verified signatures in support of their citizens' initiative petition. It appears that this will be sufficient to satisfy the new signature requirement, although I understand that the Secretary of

State's Office has yet to issue official voting statistics for the 1998 gubernatorial election.

If you have any questions or concerns regarding this letter or the submission of Ms. Hart's citizens' initiative petition, please feel free to contact me at the above number. I appreciate the continued assistance from you and our office with this matter.

Sincerely,

/s/ Christopher B. McLaughlin
Christopher B. McLaughlin

CBM:d
Enclosures
cc: Mr. David Fratello
Ms. Stephanie Hart
Phyllis Gardner, Esq.
James T. Kilbreth, Esq.

STATE OF MAINE
OFFICE OF THE SECRETARY OF STATE

DETERMINATION OF THE VALIDITY OF A PETITION FOR INITIATED LEGISLATION ENTITLED:

"An Act to Permit the Medical Use of Marijuana"

1. On November 24, 1998, petitioners resubmitted to the Secretary of State for review, pursuant to the Constitution of Maine, Article IV, Part Third, Section 18, petitions containing 68,330 signatures which were already on file, plus new petitions containing an additional 1,024 signatures, for a combined total of 69,354 signatures, on behalf of the initiated legislation entitled, "An Act to Permit the Medical Use of Marijuana."

2. The number of valid signatures required for an initiative petition to qualify for submission to the Legislature pursuant to the Constitution of Maine, Article IV, Part Third, Section 18, is 10% of the total vote cast for Governor in the most recent gubernatorial election preceding this filing. That election occurred on November 3, 1998, and the qualifying number is now 42,101 signatures. Although, as petitioners requested, I have based this determination of validity on a review of all of the signatures submitted (both newly submitted and previously filed), it is clear that petitioners already had in excess of the minimum number of signatures to qualify under the new threshold, without submitting any additional signatures for review.

3. Based upon a consolidated review of the petitions which were previously submitted, and the additional petitions submitted for the first time on November 24,

1998, I find these signatures to be invalid for the following reasons:

A. 16,568 are invalid because they were not certified by the registrars as belonging to a registered voter in that municipality.

B. 2,677 signatures are invalid because the circulators collected signatures prior to becoming registered to vote in the State of Maine.

C. 1,502 signatures are invalid because the circulators were not registered to vote in the State of Maine.

D. 733 signatures are invalid because the were collected by three circulators (Rebecca Avrett, Devon Salisbury and Alfred Thompson) who were not residents of the State of Maine. (Many of these also were found invalid for other reasons as noted in the previous determination of validity.)

E. 106 signatures are invalid because they are duplicate signatures already counted.

F. 88 signatures are invalid because the petitioner dated his or her signature after the date of the circulator's oath before the notary.

G. 44 signatures are invalid due to counting errors by the registrar.

H. 48 signatures are invalid because they do not appear to have been made by the persons they purported to be.

I. 39 signatures are invalid because of material alterations to the petition.

J. 36 signatures are invalid because the circulator's verification was incomplete.

K. 32 signatures are invalid because the certification of the registrar was not completed.

L. 8 names are invalid because the petitioners failed to sign their name.

M. 6 signatures are invalid because the petitions were circulated prior to the approval by the Secretary of State.

N. 5 signatures are invalid because the person whose name appears on the petition did not sign the petition.

O. 16 signatures are invalid because the petitioner's signature was dated more than one year before the date the petition was filed.

4. For the reasons set forth above, I find that a total of 21,948 signatures are invalid. Petitioners have therefore submitted a combined total of 47,406 valid signatures. As noted in paragraph 2 above, the minimum number of signatures required for validity is now 42,101. Because the number of valid signatures exceeds the minimum required number by 5,305 signatures, I find the petition to be valid.

Dated: December 23, 1998 /s/ Dan A. Gwadosky
Dan A. Gwadosky
Secretary of State